

SENATE BILL 39

By Haile

AN ACT to amend Tennessee Code Annotated, Title 5,
relative to county legislative bodies.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 5, Chapter 5, Part 1, is amended by
adding the following as a new section:

Notwithstanding a charter, resolution, or another law to the contrary, a county
legislative body may recall a person appointed to a position by the county legislative
body upon a two-thirds (2/3) vote of the legislative body. This section does not apply to
a person appointed by a county legislative body to fill a vacancy in the general
assembly.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.